

		The Plaintiff is ordered to provide notice of the Court's ruling.
12	30-2026-01553559 Yamtoobian vs. Lawrence	The Court has read and considered the Defendant's Motion to Set Aside (ROA 29), Defendant's Declaration (ROA 35), Plaintiff's Opposition (ROA 37), and Plaintiff's Request for Judicial Notice (ROA 39). The Court takes Judicial Notice of the CP10.5 Prejudgment Claim of Right to Possession Form, Request to Waive Court Fees (ROA 13), Request for Entry of Default (ROA 17), Notice of Change of Address or Other Contact Information (ROA 27), Proof of Service of Summon & Complaint – Unnamed Occupants (ROA 26), Proof of Service of Summons (ROA 24), and Order to Service Summons by Posting (ROA 21). The Prejudgment Claim of Right to Possession Form states as follows: "9. I understand that if I make this claim of possession, I will be added as a defendant to the unlawful detainer (eviction) action. 10. (<i>Filing Fee</i>) I understand that I must go to the court and pay a filing fee of \$ _____ or file with the court an "Application for Waiver of Court fees and Cost." ... 12. I understand that I will have <i>five days</i> (excluding court holidays) to file a response to the Summons and Complaint after I file this Prejudgment Claim of Right to Possession form." Angelina Anderson filed a Prejudgment Claim of Right to Possession form with the Court on March 27, 2026, and was added as a defendant to this action. On the same date, Ms. Anderson filed a Request to Waive Court Fees with the Court. On April 8, 2026, Plaintiff's Counsel mailed Ms. Anderson a copy of the Request for Entry of Default (ROA 17). On May 7, 2026, Ms. Anderson filed a Notice of Change of Address or Other Contact Information with the Court. A party appearing in propria persona does not provide a basis for special treatment under the law; "such a party is to be treated like any other party and is entitled to the same but no greater consideration than other litigants and attorneys." (<i>Barton v. New United Motor Manufacturing, Inc.</i> (1996) 43 Cal.App. 4th 1200, 1210.) Additionally, the Court of Appeal held that a litigant in propria persona is subject to the same restrictive procedural rules as an attorney. (<i>Kabbe v. Miller</i> (1990) 226 Cal.App. 3d 93, 98.) Ignorance of the law or a party's failure to exercise reasonable diligence generally does not constitute "excusable neglect" within the meaning of California Code of Civil Procedure section 473(b). Here, Defendant asserts that she "did not understand that I was required to respond within a shortened timeframe." However, the Prejudgment Claim of Right to Possession form expressly states in section 12: "I understand that I will have five days (excluding court holidays) to file a response to the Summons and Complaint after I file this Prejudgment Claim of Right to Possession form." Under these circumstances, Defendant's asserted misunderstanding of the response deadline does not establish excusable neglect. The Court DENIES the Defendant's Motion to Set Aside. The Writ of Possession is to issue forthwith. The Plaintiff is ordered to provide notice of the Court's ruling.